

support patent non-aggression in Linux. Even if an organisation has no patents, by taking an OIN license, it gains access to the OIN patent portfolio and an unrestricted field of use.

Q How has OIN grown since its inception in November 2005?

Since the launch of OIN, Linux and open source have become more widely used and are incredibly prevalent. The average person today has an almost countless number of touch points with Linux and open source software on a daily basis. Search engines, smartphones, cloud computing, financial and banking networks, mobile networks and automobiles, among many other industries, are all leveraging Linux and open source.

As Linux development, distribution and usage have grown -- so too has the desire of leading businesses and organisations to join OIN. In addition to the benefit of gaining access to patents worth hundreds of millions of dollars, becoming an OIN community member publicly demonstrates an organisation's commitment to Linux and open source. These factors have led OIN to grow at a very significant pace over the last five years.

We are now seeing new community members from across all geographic regions as well as new industries and platforms that include vehicles, NFV (network function virtualisation) telecommunications services, Internet of Things, blockchain digital ledgers and embedded parts.

Q How did you manage to build a patent 'no-fly' zone around Linux?

At the heart of OIN is its powerful cross-licence. Any organisation, business or individual can join OIN and get access to its patents without paying a royalty even if the organisation has no patents. The key stipulation in joining is that community members agree not to sue anyone based on a catalogue of software libraries we call the Linux System.

Q What were the major challenges you faced in building OIN up as the largest patent non-aggression community?

There is no analogy in the history of the technology industry for OIN. Where people really struggled was in understanding our business model. Because we do not charge a fee to join or access our patents, it was challenging for executives to grasp the fact that OIN was created to help all companies dedicated to Linux. For the first few years of our existence, this aspect created uncertainty as it is not common for leaders like IBM, Red Hat, SUSE, Google and Toyota to come together to contribute capital to support a common good with no financial return. But instead of seeking a financial return, these companies have had the foresight to understand that the modalities of collaborative invention will benefit all those who currently rely on, as well as those who will come to rely on, open source software. In this transformation arise market opportunities and a new way of creating value in the new economy which is open to all who have complementary technology, talent and compelling business models.

Q What practices does OIN encourage to eliminate low-quality patents for open source solutions?

Low-quality patents are the foodstuff of NPEs (non-practising entities) and organisations looking to hinder their competitors, because their products are not competitive in the marketplace. OIN has taken a multi-pronged approach towards eliminating low-quality patents. We have counselled and applauded the efforts of the USPTO (United States Patent and Trademark Office), other international patent assigning entities and various government agencies in the EU and Asia that are working to create a higher bar for granting a patent. Additionally, in the US, Asia and the EU, there are pre-patent peer review organisations that are working to ensure that prior art is well catalogued and

available for patent examiners. These initiatives are increasingly effective.

Q What are the key steps an organisation should take to protect itself from a patent infringement claim related to an open source deployment?

A good first step is to join the Open Invention Network. This gives Linux and open source developers, distributors and users access to very strategic patents owned directly by OIN, and cross-licensed with thousands of other OIN community members. Another significant step is to understand the various licences used by the open source community. These can be found at the Open Source Initiative.

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Q How do resources like Linux Defenders help organisations to overcome patent issues?

We encourage the open source community to contribute to defensive publications, as that will help to improve patent examination and therefore will limit the future licensing of other patents. Linux Defenders aims to submit prior art on certain patents while they are at the application stage to prevent or restrict the issuance of these patents. Finally, we educate the open source community on other defensive intellectual property strategies that can be employed to complement their membership in OIN.